

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index #
Date of filing:

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MICHAEL ALMONTE,

Plaintiff designates Kings
County as the place of trial

Plaintiff,

Basis of the venue is the Locus of
Occurrence

-against-

THE CITY OF NEW YORK, POLICE OFFICER
EWALD and JOHN DOES-Police Officers as yet
unidentified,

SUMMONS

Plaintiff resides at
591 Quincy Street, Apt. # 1A
Brooklyn, New York 11221

Defendants.

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County of Kings

TO THE ABOVE NAMED DEFENDANT:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in the case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

Defendant's address:

THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

Plaintiff's attorneys:

RUBENSTEIN & RYNECKI, ESQS.
16 Court Street, Suite 1717
Brooklyn, New York 11241
(718)522-1020

POLICE OFFICER EWALD
c/o New York City Police Department- 79th
Precinct
263 Tompkins Avenue
Brooklyn, New York 11216

Dated: Brooklyn, New York
November 26, 2018

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS-----X
MICHAEL ALMONTE,

Index No.:

Plaintiff,

-against-

COMPLAINTTHE CITY OF NEW YORK, POLICE OFFICER
EWALD and JOHN DOES-Police Officers as yet
unidentified,

Defendants.

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**AS AND FOR A FIRST CAUSE OF ACTION FOR
FALSE ARREST ON BEHALF OF MICHAEL ALMONTE**

1. That at all times hereinafter mentioned, plaintiff was and still is a resident of the County of Kings, City and State of New York.
2. That all times hereinafter mentioned, the defendant, THE CITY OF NEW YORK, was and still is a municipal corporation, duly organized and existing pursuant to the laws of the State of New York.
3. That the defendant, THE CITY OF NEW YORK, maintains a police force known as the NEW YORK CITY POLICE DEPARTMENT.
4. That prior hereto on May 1, 2018, and within the time prescribed by law, a sworn Notice of Claim stating, among other things, the time when and place where the injuries and damages were sustained, together with plaintiff's demands for adjustment or payment thereof, was served and that thereafter the CITY OF NEW YORK, refused or neglected for more than (30) days and up to the commencement of this action to make any adjustment or payment thereof, and that thereafter, and within the time provided by law, this action was commenced.
5. That on August 3, 2018, pursuant to the General Municipal Law, a Statutory 50-H hearing of plaintiff was held.

6. That on January 31, 2018, and at all times hereinafter mentioned and upon information and belief, the defendant, THE CITY OF NEW YORK, employed POLICE OFFICER EWALD and JOHN DOES-Police Officers as yet unidentified, as agents, servants and/or employees.

7. That on January 31, 2018, and at all times hereinafter mentioned and upon information and belief, the plaintiff, MICHAEL ALMONTE, was lawfully present at or about in front of the premises known as 99 Tompkins Avenue, County of Kings, City and State of New York.

8. That on January 31, 2018, and at all times hereinafter mentioned and upon information and belief, the plaintiff, MICHAEL ALMONTE, was falsely arrested by defendants, POLICE OFFICER EWALD and JOHN DOES-Police Officers as yet unidentified, who were acting within the scope of their employment with the defendant, THE CITY OF NEW YORK, at the aforesaid premises.

9. That on January 31, 2018, and at all times hereinafter mentioned and upon information and belief, the aforementioned false arrest was performed knowingly, intentionally and willfully.

10. That on January 31, 2018, and at all times hereinafter mentioned and upon information and belief the defendants, POLICE OFFICER "JOHN" EWALD and JOHN DOES-Police Officers as yet unidentified, who falsely arrested the plaintiff, MICHAEL ALMONTE, were acting within the scope of their employment with the defendants, THE CITY OF NEW YORK.

11. That on January 31, 2018, and at all times hereinafter mentioned and upon information and belief, the arrest and confinement was without probable cause nor based on reasonable grounds and not founded upon an arrest warrant.

12. That on April 27, 2018 all charges brought against the plaintiff, MICHAEL ALMONTE were dismissed.

13. That the arrest of the plaintiff, MICHAEL ALMONTE, as of January 31, 2018 was without probable cause.

14. That the incarcerations of the plaintiff, MICHAEL ALMONTE, from January 31, 2018 until April 27, 2018 was not supported by probable cause.

15. That the arrest and imprisonment of the plaintiff, MICHAEL ALMONTE, from January 31, 2018 until April 27, 2018 occurred as a result of the negligence of the defendants.

16. That as a result of the aforesaid false arrest and confinement, plaintiff, MICHAEL ALMONTE, sustained serious permanent personal injuries along with humiliation, shame, indignity, damage to reputation and credit and suffered emotional and physical distress and injuries.

17. By the reason of the foregoing, the plaintiff, MICHAEL ALMONTE, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SECOND CAUSE OF ACTION FOR NEGLIGENT
HIRING AND RETENTION ON BEHALF OF MICHAEL ALMONTE**

18. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "17" inclusive with the same force and effect as if more fully set forth at length herein.

19. That the defendant, THE CITY OF NEW YORK, did not exercise reasonable care and diligence in the selection, engagement, employment and training of their agents, servants, and employees and were negligent in the hiring, training and retention of the defendants, POLICE OFFICER EWALD and JOHN DOES-Police Officers as yet unidentified, who violated the civil rights of the plaintiff, MICHAEL ALMONTE.

20. That the defendant, THE CITY OF NEW YORK, had prior knowledge of the inappropriate, unlawful, and improper conduct of the defendants, POLICE OFFICER EWALD and JOHN DOES-Police Officers as yet unidentified, and continued to employ them and allowed them to be in contact with the public at large.

21. By the reason of the foregoing, the plaintiff, MICHAEL ALMONTE, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A THIRD CAUSE OF ACTION FOR FALSE
IMPRISONMENT ON BEHALF OF MICHAEL ALMONTE**

22. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "21" inclusive with the same force and effect as if more fully set forth at length herein.

23. That on January 31, 2018, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER EWALD and JOHN DOES- Police Officers as yet unidentified, were acting within the scope of their employment when they, without justification and without probable cause, imprisoned the plaintiff.

24. That the defendants, POLICE OFFICER EWALD and JOHN DOES- Police Officers as yet unidentified, while acting within the scope of their employment, intentionally confined the plaintiff against his will and said confinement was not privileged.

25. By the reason of the foregoing, the plaintiff, MICHAEL ALMONTE, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A FOURTH CAUSE OF ACTION FOR MALICIOUS
PROSECUTION ON BEHALF OF MICHAEL ALMONTE**

26. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "25" inclusive with the same force and effect as if more fully set forth at length herein.

27. That on January 31, 2018, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER EWALD and JOHN DOES- Police Officers as yet unidentified, within the scope of their employment, without justification, without probable cause, created and submitted an erroneous police report in an effort to cover up the aforesaid and initiate a prosecution in bad faith.

28. That on January 31, 2018, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER EWALD and JOHN DOES-Police Officers as yet unidentified, were acting within the scope of their employment, maliciously prosecuted the plaintiff, MICHAEL ALMONTE.

29. That on January 31, 2018, and at all times hereinafter mentioned and upon information and belief, as a result of the aforesaid malicious prosecution, plaintiff, MICHAEL ALMONTE, sustained serious, permanent, personal injuries along with humiliation, shame, indignity, damage to reputation and credit, legal fees, loss of employment opportunities and suffered emotional and physical distress and injury.

30. By reason of the foregoing, plaintiff, MICHAEL ALMONTE, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A FIFTH CAUSE OF ACTION FOR CIVIL
RIGHTS VIOLATION ON BEHALF OF MICHAEL ALMONTE**

31. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "30" inclusive with the same force and effect as if more fully set forth at length herein.

32. The defendant, THE CITY OF NEW YORK, through policies, practices and customs, directly caused the constitutional violation suffered by plaintiff, MICHAEL ALMONTE.

33. The defendant, THE CITY OF NEW YORK, through its police department, has had and still has hiring practices that it knows will lead to the hiring of the police officers, including but not limited to POLICE OFFICER EWALD and JOHN DOES-Police Officers as yet unidentified, lacking the intellectual capacity and moral fortitude to discharge their duties in accordance with the constitution and is indifferent to the consequences.

34. The defendant, THE CITY OF NEW YORK, through its police department, has de facto quota policy that encourages unlawful stops, unlawful searches, false arrests, the fabrication of evidence and perjury.

35. The defendant, THE CITY OF NEW YORK, at all relevant times, was, upon information and belief, aware that these individual defendants, including but not limited to POLICE OFFICER EWALD and JOHN DOES-Police Officers as yet unidentified, routinely commit constitutional violations such as those at issue here and has failed to change its policies, practices and customs to stop this behavior.

36. The defendant, THE CITY OF NEW YORK, at all relevant times, was aware that these individual defendants, including but not limited to POLICE OFFICER EWALD and JOHN DOES-Police Officers as yet unidentified, are unfit officers who have previously committed the acts alleged herein and/or have a propensity for unconstitutional conduct.

37. As a direct and proximate result of this unlawful conduct, the plaintiff, MICHAEL ALMONTE, sustained the damages hereinbefore alleged.

**AS AND FOR A SIXTH CAUSE OF ACTION FOR
PUNITIVE DAMAGES ON BEHALF OF MICHAEL ALMONTE**

38. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "37" inclusive with the same force and effect as if more fully set forth at length herein.

39. The actions of the defendants herein-above alleged, were malicious, willful and grossly negligent.

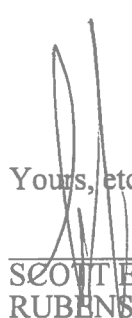
40. That the defendant, THE CITY OF NEW YORK, authorized, permitted and ratified the unlawful and negligent acts of their agents, servants and/or employees, including but not limited to POLICE OFFICER EWALD and JOHN DOES-Police Officers as yet unidentified, herein-above alleged.

41. By the reason of the foregoing, the plaintiff, MICHAEL ALMONTE, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

WHEREFORE, plaintiff, MICHAEL ALMONTE, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **First** Cause of Action; plaintiff, MICHAEL ALMONTE, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Second** Cause of Action; plaintiff, MICHAEL ALMONTE, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Third** Cause of Action; plaintiff, MICHAEL ALMONTE, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Fourth** Cause of Action; plaintiff, MICHAEL ALMONTE, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Fifth** Cause of Action; plaintiff, MICHAEL ALMONTE, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Sixth** Cause of Action; together with attorneys' fees, and the costs and disbursements of this action.

DATED: Brooklyn, New York
November 26, 2018

Yours, etc.,


SCOTT E. RYNECKI, ESQ.
RUBENSTEIN & RYNECKI, ESQS.
Attorneys for Plaintiff
MICHAEL ALMONTE
16 Court Street Suite 1717
Brooklyn, New York 11241
(718) 522-1020
File No.: 18MA01-31

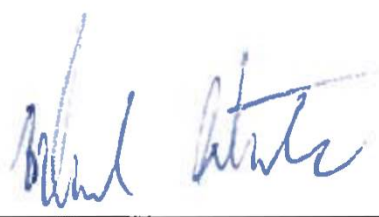
INDIVIDUAL VERIFICATION

STATE OF NEW YORK)

) SS:

COUNTY OF KINGS)

MICHAEL ALMONTE, being duly sworn, deposes and says, that deponent is the plaintiff in the within action; that deponent has read the foregoing **COMPLAINT** and knows the contents hereof; that the same is true to deponent's own knowledge, except as to the matters therein stated to be alleged upon information and belief, and that as to those matters deponent believes them to be true.



MICHAEL ALMONTE

Sworn to before me this 29th
day of November, 2018



NOTARY PUBLIC

MAGDA MARIN-COLON
Notary Public, State of New York
No. 01MA6153891
Qualified in Richmond County
Commission Expires 1-16-2019